

		California Rules of Professional Conduct, Rule 1.16 contains numerous grounds for mandatory and permissible withdrawal. Moving Counsel refers to mandatory and permissible withdrawal without specifying the ground(s) upon which Moving Counsel moves to be relieved. Moving Counsel does not provide any general facts explaining the reasons for the motion, and the Court cannot determine whether adequate grounds exist to grant the motions to be relieved as counsel of record for Defendants. Further, the instant motions to be relieved as counsel of record were set for hearing on May 28, 2026 and June 4, 2026 in in Department C44. (ROA 229, 240.) After the moving papers were served on the client, the case was reassigned to this Department pursuant to a Minute Order dated May 19, 2026, and the motions were continued to June 22, 2026. (ROA 250.) The clerk gave notice of the Minute Order dated May 19, 2026. (ROA 251.) However, there is no indication that Defendants were given notice of the continued hearing date, or of the location of the newly assigned Department. Based on the foregoing, the Court CONTINUES the motions to be relieved as counsel of record to July 13, 2026, at 9:00 a.m. in Department N14. Moving Counsel is ORDERED to file supplemental declarations providing general facts sufficient to show that mandatory and/or permissive withdrawal is appropriate. Said declarations to be filed and served no later than nine (9) courts day before the continued hearing date. Moving Counsel is also ORDERED to immediately serve notice on the clients and on all parties to the action. Moving Counsel to file proof of service of the same no later than nine (9) court days before the continued hearing date.
103	Fullerton v Air Combat USA, 2026-01548989	Motion to Be Relieved as Counsel of Record – CONTINUED

Suzanne Burke Spencer (“Moving Counsel”), moves to be relieved as counsel of record for Defendant Air Combat USA, Inc.

“The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1).” (Cal. Rules of Court, rule 3.1362(c).)

Moving Counsel’s declaration in support of the motion states: “Attorneys are required to withdraw from Defendant’s representation by rule 1.16 of the California Rules of Professional Conduct. Permissible grounds for withdrawal also exist under rule 1.16. Attorneys are constrained by their duty of confidentiality and by attorney-client privilege from further expounding upon the reasons for withdrawal.” (ROA 40, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.)

California Rules of Professional Conduct, Rule 1.16 contains numerous grounds for mandatory and permissible withdrawal. Moving Counsel refers to mandatory and permissible withdrawal without specifying the ground(s) upon which Moving Counsel asks to be relieved. Moving Counsel does not provide any general facts that would allow the Court to determine whether adequate grounds exist to grant the motion to be relieved as counsel of record for Defendants.

Further, this motion was originally set for hearing on May 28, 2026 in Department C44. (ROA 42.) After the moving papers were served on the client, the case was reassigned to this Department pursuant to a Minute Order dated May 14, 2026, and the motion was continued to June 22, 2026 pursuant to a Minute Order dated May 20, 2026. (ROA 53, 57.) The clerk gave notice of both Minute Orders to counsel for the parties. (ROA 54, 58.) However, there is no indication that Defendant,

		Air Combat USA, Inc., was given notice of the continued hearing date, or of the location of the newly assigned Department. Based on the foregoing, the Court CONTINUES the motion to be relieved as counsel of record to July 13, 2026 at 9:00 a.m. in Department N14. Moving Counsel is ORDERED to file a supplemental declaration providing general facts sufficient to show that mandatory and/or permissive withdrawal is appropriate. Said declaration to be filed and served no later than nine (9) courts day before the continued hearing date. Moving Counsel is also ORDERED to immediately serve notice on the clients and on all parties to the action. Moving Counsel to file proof of service of the same no later than nine (9) court days before the continued hearing date.
104	Fu vs. Action Property Management, Inc., 2021-01207341	Demurrer to Amended Complaint – OVERRULED Motion to Strike Complaint – DENIED Plaintiffs Jian Fu and Xiaodan Qu (collectively, “Plaintiffs”) filed a complaint against defendant Action Property Management, Inc. (“Defendant”) for negligence in June 2021. Plaintiffs own a residence located in a common interest development managed by an HOA. The HOA hired Defendant to provide property management services. Plaintiffs allege: in August 2014, they moved out of the Property but retained ownership and submitted to Defendant a request to receive annual policy statements and mailings and notices at another address; Defendant failed to update the HOA’s records and did not send annual policy statements, mailings, or notices to the secondary address, including notice of increased monthly assessments; while Plaintiffs continued making assessment payments at the original amount, they fell into arrears; the HOA recorded a lien on the Property and filed a lawsuit against Plaintiffs; that because of Defendant’s negligence, Plaintiffs suffered damages from late fees, penalties, collection fees, and attorney fees in the HOA lawsuit.